

LONG PRIVATE RESIDENTIAL LEASE AGREEMENT

This Agreement is intended as a clear working lease for a private residential tenancy in Malta. Mandatory Maltese law will prevail if any clause conflicts with it.

1. Parties

This Agreement is made on the ____ day of _____ 20__ between:

Lessor / Landlord

Name	_____
ID Card Number	_____
Address	_____
Email	_____
Mobile	_____

and the following five persons, together called the **Lessee** or **Tenants**:

Lessee 1

Name	_____
Passport / ID Number	_____
Email	_____
Mobile	_____

Lessee 2

Name	_____
Passport / ID Number	_____
Email	_____
Mobile	_____

Lessee 3

Name	_____
Passport / ID Number	_____
Email	_____
Mobile	_____

Lessee 4

Name	_____
Passport / ID Number	_____
Email	_____
Mobile	_____

Lessee 5

Name	_____
Passport / ID Number	_____

Email

Mobile

The Lessor and the Lessees are together called the **Parties**.

2. The Property

The Lessor rents to the Lessees the furnished apartment situated at:

The apartment is called the **Premises** or **Property** in this Agreement. It may only be used as a private residence.

3. Duration of the Lease

The Lease shall be for a period of **two (2) years**.

Starting date

Ending date

The Lease is subject to the mandatory provisions of Maltese law, including the Private Residential Leases Act.

For a two-year long private residential lease, the Lessees may not exercise the ordinary right of withdrawal during the first **nine (9) months**.

After the applicable mandatory period, the Lessees may withdraw from the Lease by giving the Lessor at least **two (2) months' notice by registered letter**, or such other notice as may be required by mandatory law.

No penalty shall apply merely because the Lessees properly exercise a statutory right of withdrawal after the mandatory period.

If the Lessees leave without giving the legally required notice, their physical departure does not by itself release them from rent or other obligations which remain legally due.

4. Monthly Rent

The rent for the entire Premises is:

EUR 2,000 per month

The rent shall be paid monthly in advance, on or before the ____ day of each month, by bank transfer or another method agreed in writing by the Lessor.

The EUR 2,000 rent is the price for the **whole apartment**. It is **not calculated per person**.

The monthly rent remains EUR 2,000 even if one or more Lessees move out, return to their home country, travel for a long period, rent another property, stop living at the Premises, stop working in Malta, or otherwise cease occupying the Premises.

The remaining Lessees cannot reduce the rent because fewer than five persons are living at the Premises.

5. Joint and Several Responsibility

All five Lessees are **jointly and severally liable** for all obligations under this Agreement.

Each Lessee is responsible for ensuring that the **full EUR 2,000 monthly rent** and all other amounts legally due under this Agreement are paid.

Any private arrangement between the Lessees about how they divide the rent is their own responsibility and does not affect the Lessor.

If one Lessee does not pay their agreed share, the full EUR 2,000 still remains due.

6. Security Deposit

The Lessees shall pay a security deposit of:

EUR 2,000

The deposit secures the Lessees' obligations under this Agreement. Subject to Maltese law, the Lessor may use or retain all or part of the deposit for amounts properly due, including:

- unpaid rent;
- unpaid water or electricity;
- damage beyond fair wear and tear;
- broken or missing furniture, equipment, keys or access devices;
- damage caused by the Lessees, occupants or their visitors;
- excessive cleaning required because of the condition in which the Premises are returned;
- professional removal of grease, stains, smoke residue, odours or excessive dirt;
- pest-control costs where an infestation was caused or materially contributed to by poor hygiene or tenant conduct;
- rubbish or abandoned-property removal;
- repainting required because of stains, marks, smoke, grease, holes, misuse or damage beyond normal wear;
- repair or replacement of items damaged through misuse, negligence or lack of reasonable care;
- locksmith or key replacement costs; and
- other amounts lawfully due under this Agreement.

The security deposit is not the last month's rent. The Lessees may not stop paying rent and tell the Lessor to use the deposit instead.

If lawful repair, cleaning, unpaid rent or other amounts exceed EUR 2,000, the Lessees remain responsible for the balance.

Where reasonably possible, the Lessor should support deductions with invoices, receipts, quotations, photographs or other evidence.

7. Maximum Occupancy - Five Persons

The **absolute contractual maximum occupancy is five (5) persons**.

Only the five Lessees named in this Agreement may live at the Premises.

No sixth person may reside at the Premises without the Lessor's prior written consent and compliance with any registration or other legal requirements.

A visitor must not become an unofficial resident. A person may be treated as residing at the Premises where that person regularly sleeps there, keeps belongings there as their home, receives correspondence there as a resident, or otherwise uses the Premises as their habitual residence.

Unauthorised occupation is a material breach of this Agreement.

8. A Lessee Who Leaves Is Not Automatically Released

If one of the five Lessees stops living at the Premises, that person is **not automatically removed from this Agreement**.

They remain a party to this Agreement unless the Lessor expressly agrees in writing to release them and any legally required amendment or registration is completed.

A Lessee cannot simply announce that they have moved elsewhere and therefore have no further responsibility.

9. Replacement Tenants

No Lessee has the right to choose their own replacement.

A departing Lessee may not bring another person into the Premises to take their place without the Lessor's **prior written approval**.

Any replacement tenant must be approved by the Lessor and any legally required amendment or registration must be completed.

The monthly rent remains EUR 2,000 whether or not a replacement is approved.

10. Bedrooms and Sleeping Arrangements

Room	Maximum sleeping capacity
Main bedroom with double bed	2 persons
Bedroom with two single beds	2 persons
Bedroom with one single bed	1 person
Internal/windowless room	0 persons
Maximum total	5 persons

The internal room without an external window is **NOT a bedroom and must not be used for sleeping**.

No person may sleep in that room. No bed, mattress, folding bed, bunk bed, sofa bed, camp bed or other sleeping equipment may be placed or used in that room.

11. No Additional Beds

The Lessees may not introduce or install any additional bed, mattress, bunk bed, folding bed, camp bed, sofa bed or other sleeping accommodation without the Lessor's prior written permission.

The existing beds and mattresses must not be moved to another room for the purpose of increasing sleeping capacity.

A deliberate breach of Clauses 7, 10 or 11 shall be treated as a serious breach of the Lease.

12. Weekly Professional Cleaner

A professional cleaner shall attend the Premises **once every week**.

The weekly cleaning is a condition of this Lease and is **not optional**.

The cost is **EUR 30 per cleaning visit**, paid by the Lessees.

The EUR 30 is for the Premises as a whole and is not EUR 30 per Lessee.

The Lessor may arrange the cleaner and agree a regular day and reasonable time for the cleaning visit.

The Lessees shall provide reasonable access for the cleaner at the agreed time.

If the cleaner attends at an agreed appointment but cannot enter because the Lessees failed to provide access, and the cleaner charges for the missed visit, that charge shall remain payable by the Lessees.

The weekly cleaner does **not** remove the Lessees' own obligation to keep the Premises clean between cleaning visits.

The cleaner is intended to provide regular general cleaning. The cleaner is not responsible for unreasonable amounts of rubbish, excessive grease, extreme dirt or damage caused by the Lessees.

13. Cleanliness and Hygiene

The Premises must be maintained in a **reasonably clean, sanitary and hygienic condition at all times**.

- regularly dispose of rubbish;
- clean food and drink spills;
- keep the kitchen reasonably free of grease and accumulated food residue;
- keep the oven, hob and cooking area reasonably clean;
- keep bathrooms and toilets hygienic;
- prevent food waste from accumulating;
- keep floors reasonably clean;
- take reasonable steps to prevent pests and insects;
- keep furniture and mattresses reasonably clean;

- ventilate the Premises appropriately; and
- take reasonable steps to prevent avoidable mould, moisture and bad smells.

The Lessees must not allow the Premises to develop substantial grease accumulation, rotting food, excessive rubbish, pest infestation caused by poor hygiene, persistent foul smells caused by lack of cleaning, excessive staining, serious unhygienic bathroom conditions, substantial avoidable mould caused by improper use or lack of reasonable ventilation, or other conditions which may damage the Premises.

The fact that a weekly cleaner attends does not excuse any of these obligations.

14. Failure to Keep the Property Clean

Where the Premises are found to be substantially dirty or unhygienic, the Lessor may give the Lessees written notice describing the problem and requiring it to be corrected within a reasonable period.

For an ordinary cleanliness problem, the Lessor will normally give the Lessees a reasonable opportunity to correct it.

Where the problem creates an urgent hygiene, pest, safety or property-damage risk, a shorter period may be required.

If a substantial cleanliness or hygiene breach is not corrected after notice, or substantial cleanliness problems repeatedly occur after previous warnings, this shall constitute a **material breach** of this Agreement for which termination is expressly contemplated, subject to Maltese law.

The Lessor may also arrange any additional professional cleaning reasonably required because of the Lessees' breach and claim the reasonable documented cost from the Lessees.

15. Cooking, Grease, Smoke and Odours

Normal domestic cooking is permitted. However, the Lessees shall take reasonable measures to prevent cooking from causing unreasonable nuisance or damage.

When cooking, the Lessees shall reasonably use the kitchen extractor, available ventilation, windows where appropriate, and reasonable cleaning practices.

The Lessees must not allow excessive quantities of grease, smoke, steam, fumes or persistent strong odours to accumulate inside the Premises or materially affect common areas or neighbouring apartments.

Kitchen surfaces, walls, cupboards, extractor equipment and nearby areas must be cleaned sufficiently often to prevent excessive grease accumulation.

If persistent smoke, fumes, grease or odours materially disturb neighbours and continue after reasonable written warning, this may constitute a material breach of the Agreement.

16. Neighbours and Nuisance

The Lessees and their visitors must respect the neighbours and other residents of the building.

They shall not cause or permit unreasonable shouting, loud music, loud television, parties or gatherings, banging or repeated loud noise, smoke, fumes, persistent offensive odours, rubbish, obstruction, threatening behaviour or other substantial nuisance.

The Lessees shall also comply with any lawful condominium or building rules communicated to them.

A **serious incident**, or repeated nuisance after written warning, shall constitute a material breach for which termination is expressly contemplated.

17. Common Areas

The Lessees must keep the common areas of the building clear.

They shall not leave rubbish, furniture, mattresses, shoes, cooking equipment or other belongings in common stairways, entrances, corridors or landings where this is prohibited or causes an obstruction or nuisance.

The Lessees and their visitors must behave reasonably in lifts, entrances, garages, corridors and all other shared areas.

18. Smoking

Smoking inside the Premises is strictly prohibited. This includes cigarettes, cigars, pipes and shisha/hookah. Vaping inside the Premises is also prohibited.

Any cleaning, repainting, odour treatment or repair reasonably required because of smoking or vaping in breach of this clause shall be paid by the Lessees.

19. Pets

No pets or animals may be kept at the Premises without the Lessor's prior written permission.

20. Subletting

The Lessees may not sublet the Premises or any room, advertise any part of the Premises for rent, use the Premises for short-let accommodation, assign this Agreement, allow another person to take over the Lease, or charge another person for accommodation at the Premises without the Lessor's prior written consent.

Unauthorised subletting is a material breach.

21. Furniture, Fixtures and Luxury Finishes

The Lessees acknowledge that the Premises are furnished and contain high-quality furniture, appliances, kitchen fittings, flooring, bathrooms, doors and finishes.

The Lessees shall use them with reasonable care.

Without written permission, the Lessees shall not drill into walls, tiles, doors, cabinets or furniture; repaint walls; install permanent fixtures; use strong adhesive products capable of damaging walls or furniture; make structural changes; materially alter the layout; or remove furniture from the Premises.

Hot pots, pans or similar objects must not be placed directly onto surfaces where doing so may cause damage.

Kitchen surfaces must not be used in a way likely to scratch, burn, stain or otherwise damage them.

22. Damage

The Lessees are responsible for damage caused by themselves, any other authorised occupant, their visitors, negligence, misuse, failure to take reasonable care, or failure to notify the Lessor promptly of a problem which then becomes worse.

The Lessees are **not responsible merely for ordinary fair wear and tear** resulting from normal proper residential use.

23. Leaks and Problems Must Be Reported

The Lessees must immediately inform the Lessor when they become aware of any important problem, including water leaks, drainage problems, electrical faults, broken appliances, air-conditioning leaks, water ingress, broken windows, plumbing problems, serious mould, pest infestation, or any problem which may cause further damage if ignored.

If the Lessees know about a problem, fail to report it within a reasonable time, and their failure causes additional avoidable damage, they may be responsible for that additional damage.

24. Plumbing

The Lessees must not dispose of inappropriate items through toilets, sinks or drains, including excessive oil, grease, wipes, sanitary products or other objects likely to cause blockage.

Where a blockage is shown to have resulted from misuse by the Lessees or their visitors, the reasonable repair cost shall be borne by the Lessees.

25. Utilities

There is no fixed EUR 150 utilities advance.

Water and electricity consumed during the Lease shall be paid by the Lessees according to actual consumption and the applicable charges.

The Lessor shall provide access to relevant bills or account information as required by law.

The Lessees shall pay amounts properly due for their consumption within ____ days after being provided with the relevant bill or statement.

26. Inspection of the Premises

The Lessor or an authorised representative may inspect the Premises at reasonable times upon at least **48 hours' prior notice**.

Routine inspections may normally take place approximately once every **three months**.

The Lessor may reasonably inspect general condition, cleanliness, hygiene, furniture and finishes, damage, safety issues, signs of unauthorised occupancy, and compliance with this Agreement.

Additional inspections may be requested where the Lessor has reasonable grounds to believe there is serious damage, an urgent hygiene problem, pest infestation, water leakage, unauthorised occupancy, a serious contractual breach, or another genuine property or safety concern.

In a genuine emergency, the Lessor may act as permitted by law without the normal advance notice.

27. Keys

Apartment keys	_____
Main entrance keys	_____
Mailbox keys	_____
Garage remotes	_____
Access fobs/cards	_____
Other	_____

The Lessees must not give keys or access devices to an unauthorised resident.

All keys and access devices must be returned when possession is surrendered.

The reasonable cost of replacing missing keys, remotes or access devices may be charged to the Lessees.

28. Serious / Material Breaches

The following may constitute material breaches of this Agreement:

- 1. failure to pay rent or other sums lawfully due;
- 2. unauthorised subletting;
- 3. an unauthorised resident;
- 4. exceeding the maximum occupancy of five persons;
- 5. using the windowless/internal room as a sleeping room;
- 6. introducing prohibited additional sleeping accommodation;
- 7. serious or repeated nuisance to neighbours;
- 8. substantial or repeated hygiene problems;
- 9. deliberate or negligent substantial damage;
- 10. unlawful use of the Premises;
- 11. serious interference with safety equipment;
- 12. substantial unauthorised alterations;
- 13. serious or repeated refusal of lawful access after proper notice;
- 14. keeping unauthorised animals;
- 15. smoking inside the Premises in breach of this Agreement;
- 16. materially false information regarding the persons residing at the Premises; or

- 17. another serious breach of an essential condition of this Agreement.

Where a breach is reasonably capable of being corrected, the Lessor may give written notice requiring it to be corrected within a reasonable period.

Repeated breaches after warning may be treated as a material breach even if each individual incident would not, by itself, justify termination.

29. Termination for Breach

Where a material breach occurs for which termination is contemplated under this Agreement, the Lessor may take the steps available under Maltese law to terminate the Lease and recover possession.

Nothing in this Agreement gives the Lessor a right to carry out an unlawful self-help eviction.

If the Lessees dispute termination and refuse to surrender possession, eviction and recovery of possession shall be pursued through the legally applicable procedure.

30. Early Departure and Notice

Simply physically leaving the Premises does not automatically terminate this Agreement.

The Lessees must follow the notice requirements required by Maltese law.

If adequate notice is not properly served, the Lease is not treated as properly terminated merely because the Lessees left.

The Lessor may apply the deposit against rent or other amounts which remain lawfully due.

If the deposit does not cover the amount properly due, the Lessees remain responsible for the balance.

31. Condition When Leaving

When the Lease ends and the Lessees surrender the Premises, they shall completely vacate the Premises, remove all personal belongings, remove all rubbish, return all keys and access devices, leave the Premises reasonably clean, leave the kitchen and bathrooms reasonably clean and hygienic, leave furniture and appliances in proper condition subject to fair wear and tear, and repair or pay for damage for which they are responsible.

32. End-of-Lease Cleaning, Painting, Repair and Replacement

If, at the end of the Lease, additional work is reasonably necessary because of **damage, misuse, neglect, excessive dirt, staining, grease, smoke, unauthorised alterations or other tenant-caused conditions beyond fair wear and tear**, the reasonable cost shall be paid by the Lessees.

This may include reasonable costs for professional deep cleaning, grease removal, stain removal, odour treatment, rubbish removal, pest treatment, repainting, plaster repairs, floor repairs, furniture cleaning or repair, mattress cleaning or replacement, damaged appliance repair, replacement of damaged furniture, replacement of damaged fittings, replacement of broken items, or other restoration reasonably required because of the Lessees' conduct.

Example: if a wall needs painting simply because paint normally ages after proper use, that is not automatically tenant damage. If a wall needs repainting because it is heavily stained, greasy, smoked in, drilled, marked or damaged by the Lessees, the reasonable cost may be charged to them.

The same principle applies to furniture, appliances, floors, mattresses and other parts of the Premises.

If an item reasonably needs to be replaced because of tenant-caused damage beyond fair wear and tear, the Lessees shall be responsible for the reasonable cost attributable to that damage.

33. No Use of Deposit as a Limit of Liability

The EUR 2,000 deposit does **not** limit the Lessees' liability to EUR 2,000.

For example, if lawful tenant-caused damage and unpaid amounts total EUR 4,500, the Lessor may apply the EUR 2,000 deposit and claim the remaining EUR 2,500, subject to law and proof.

34. Visitors

Normal social visitors are permitted. Visitors must comply with the rules concerning neighbours, noise, smoking, cleanliness, common areas, damage and lawful conduct.

The Lessees are responsible for damage or breach caused by their visitors.

A visitor may not become a permanent or habitual resident without the Lessor's prior written approval.

35. Illegal Activity

The Premises must not be used for unlawful activity.

Serious unlawful use shall constitute a material breach for which termination is expressly contemplated, subject to Maltese law.

36. End of the Two-Year Lease

If the Lessor does not wish the Lease to renew after its agreed term, the Lessor shall give the notice required by Maltese law.

The Parties acknowledge that mandatory statutory notice rules apply, and failure to give the required notice may result in renewal according to law.

37. Notices and Communications

Ordinary communication may take place by email, WhatsApp, SMS or another agreed written communication method.

However, where Maltese law requires a notice to be sent by registered letter or by another specific method, the legally required method must be used.

WhatsApp or email does not replace a mandatory form of legal notice where the law requires something else.

38. Housing Authority Registration

This Lease shall be registered with the Housing Authority where required under Maltese law.

The Parties shall provide the information reasonably required for registration.

39. No Waiver

If the Lessor does not immediately enforce a particular breach on one occasion, this does not mean that the Lessor permanently gives up the right to enforce that clause or a later breach.

40. Changes to This Agreement

Any agreed change to this Agreement must be made in writing and, where legally required, registered or otherwise formalised.

Verbal changes are not sufficient where the law or this Agreement requires a written amendment.

41. Maltese Law

This Agreement shall be governed by the laws of Malta.

If any part of this Agreement conflicts with a mandatory provision of Maltese law, the mandatory law shall apply.

The remainder of the Agreement shall continue to apply so far as legally possible.

42. Entire Agreement

This document contains the agreement between the Parties regarding the Lease.

Any previous verbal discussions relating to matters covered by this Agreement are replaced by this written Agreement, except for anything which the Parties expressly confirm in writing.

43. Important Points Specifically Confirmed by the Lessees

1. Rent is EUR 2,000 every month for the apartment, not EUR 400 per person.
2. Rent remains EUR 2,000 even if one or more Lessees move out.
3. All five Lessees are jointly responsible for the full rent and other obligations.
4. A Lessee who physically moves out is not automatically released from this Agreement.
5. Maximum occupancy is five persons.

6. No sixth resident is permitted without the Lessor's written approval and compliance with applicable law.
 7. The internal/windowless room cannot be used for sleeping.
 8. No extra bed or mattress may be added without written permission.
 9. A cleaner will attend once every week and the Lessees shall pay EUR 30 per visit.
 10. The weekly cleaner does not remove the Lessees' responsibility to keep the apartment reasonably clean every day.
 11. Excessive dirt, grease, rubbish, bad hygiene, pest problems or persistent unreasonable odours may constitute a breach.
 12. Neighbours must not be subjected to unreasonable noise, smoke, fumes, rubbish, persistent odours or other substantial nuisance.
 13. Tenant-caused damage, excessive cleaning, repainting or replacement beyond fair wear and tear may be charged to the Lessees.
 14. The EUR 2,000 security deposit does not limit the amount the Lessees may owe for lawful damage, rent or other obligations.
 15. Proper statutory notice must be given before withdrawing from the Lease.
 16. Serious or repeated breaches may result in termination and legal proceedings for recovery of possession.
- Each Lessee confirms that they have read and understood these points.

44. Signatures

Lessor

Name	_____
Signature	_____
Date	_____

Lessee 1

Name	_____
Signature	_____
Date	_____

Lessee 2

Name	_____
Signature	_____
Date	_____

Lessee 3

Name	_____
Signature	_____
Date	_____

Lessee 4

Name	_____
Signature	_____
Date	_____

Lessee 5

Name	
Signature	
Date	